

5. 25CV01528 GRAYSON, JOHN I, IV V. FRANCHISE TAX BOARD

EVENT: Defendant Franchise Tax Board's Motion to Set Aside Entry of Default and for Leave to Defend the Action

The Court finds that Defendant Franchise Tax Board's ("Defendant" herein) Motion to Set Aside Entry of Default and for Leave to Defend the Action was made within the period permitted by Code of Civil Procedure §473.5(a) and that the Defendant's lack of actual notice in time to defend the action was not caused by Defendant's avoidance of service or inexcusable neglect. Therefore, the Motion is granted and the Default entered on May 4, 2026 is set aside. Defendant shall file and serve its responsive pleading within 20 days' from the date of this hearing. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks. Additionally, the Court sets this matter for a Case Management Conference on November 18, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

6. 25CV02891 JANE DOE CFL V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Plaintiff's Motion to Compel California Commission on Teacher Credentialing to Produce Records Subpoenaed by Plaintiff

The Court does not find that the California Commission on teacher Credentialing ("the Commission" herein) is statutorily prohibited from disclosing documents, nor subject to criminal prosecution for such disclosure. The Court does find that Plaintiff Jane Doe CFL ("Plaintiff" herein) seeks discovery into Jennifer Lynn Smith's alleged misconduct, including the circumstances and reasons related to any investigation or disciplinary action related to her teaching credential, which is relevant, and could lead to the discovery of admissible evidence. Moreover, Plaintiff has demonstrated a compelling need for the non-party information. The Motion is granted. The Commission is to produce the previously withheld documents within 14 days' of this hearing, subject to a privilege log that is to be produced concurrently with the further production. Plaintiff shall prepare and submit a revised form of order consistent with this ruling within two weeks.

7. 25CV05108 BARNES, KATHERINE ET AL V. MEDERS-KNIGHT, ALI ET AL

EVENT: Cross-Defendants' Demurrer to First Amended Cross-Complaint

The Court does acknowledge that while Cross-Complainant California Open Lands, a California Non-Profit Corporation ("Cross-Complainant" herein) argues there was a failure by Cross-Defendants Katherine Barnes and Nancee Barnes ("Cross-Defendants" herein) to properly and in good faith participate in the meet and confer process, *Code of Civil Procedure* §430.41 contains no provision for compelling compliance with the meet and confer requirement, unlike the meet and confer requirement in the discovery process. See, *Code of Civil Procedure* §2023.020. Additionally, the failure to sufficiently meet and confer is not a proper ground to overrule or sustain a demurrer. *Code of Civil Procedure* §§430.41(a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45